

23VECV04263 23VECV04263

County: los-angeles

Division: Civil Law and Motion

Department: NWI

Hearing date: 2026-08-28

Motion: MOTION TO DETERMINE SUCCESSOR-IN-INTEREST AND AUTHORIZING SUBSTITUTION OF PARTY PLAINTIFF

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Case Number: 23VECV04263 Hearing Date: August 28, 2026 Dept: NWI

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

COUNTY
OF LOS ANGELES

HAMID REZA
TAMJIDI, an individual,

Plaintiff,

vs.

ASHLER OAKS, LLC, et al.

Defendants.

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CASE

NO: 23VECV04263

[TENTATIVE]

ORDER RE: MOTION TO DETERMINE SUCCESSOR-IN-INTEREST AND AUTHORIZING
SUBSTITUTION OF PARTY PLAINTIFF

Dept.

I

HEARING

DATE: August 28, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: September 26, 2023

TRIAL

DATE: August 31, 2026

I.

BACKGROUND

This is a landlord-tenant action arising out of the rental agreement between Plaintiff Hamid Reza Tamjidi ("Plaintiff") and Defendants Ashler Oaks, LLC ("Ashler"), Tanglewood Apartments, LLC ("Tanglewood"), Cheyenne Vista, LLC ("CVL"), Redgate Arlington, LLC ("Redgate"), and the Lighthouse Group, LLC ("Lighthouse") (collectively, "Defendants"), for renting the real property located at 6220 Owensouth Ave., #102, Woodland Hills. CA 91367 (the "Subject Property"). On September 26, 2023, Plaintiff filed the operative Complaint against Defendants and DOES 1 through 50, alleging causes of action for: (1) Negligence – Cal. Civ. Code §§ 1714(a), 3333; (2) Breach of Warranty of Habitability; (3) Breach of Covenant of Quiet Enjoyment; (4) Premises Liability; (5) Nuisance; and (6) Intentional Infliction of Emotional Distress.

On July 12, 2024, Defendants filed an Answer to the Complaint and Cross-Complaint against Plaintiff and DOES 1 through 10 (collectively, "Cross-Defendants"), alleging causes of action for: (1) Breach of Contract; and (2) Common Counts.

On October 7, 2024, Plaintiff filed an Answer to the Cross-Complaint.

On July 1, 2026, Non-Party Shahram Tamjidi ("Tamjidi") filed the instant Motion to Determine Successor-in-Interest and Authorizing Substitution of Party Plaintiff. On August 17, 2026, Defendants filed an Opposition. On August 21, 2026, Tamjidi filed a Reply.

II.

LEGAL

STANDARD

Code

of Civil Procedure, Section 377.31 provides that "[o]n motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's

personal representative or, if none, by the decedent's successor in interest.”²
(Code Civ. Proc., § 377.31.)³ “Decedent's successor in interest' means the beneficiary of the decedent's estate or other successor in interest who succeeds to a cause of action or to a particular item of the property that is the subject of a cause of action.” (Code. Civ. Proc., § 377.11.) “Under section 377.30 of the Code of Civil Procedure, the successor in interest is generally authorized to commence an action on the surviving cause of action only if there is no personal representative for the decedent.” (Lickter v. Lickter (2010) 189 Cal.App.4th 712, 733.)

A

person who seeks to commence such an action as the decedent's successor in interest must file an affidavit or declaration providing the following:⁴⁵

1. The decedent's name

2. The date and place of the decedent's death⁶⁷

3. “No proceeding is now pending in California for administration of the decedent's estate”.⁸⁹

4. If the decedent's estate was administered, a copy of the final order showing the distribution of the decedent's cause of action to the successor in interest¹⁰¹¹

5. Either of the following, as appropriate, with facts in support thereof:¹²¹³

A. “The affiant or declarant is the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) and succeeds to the decedent's interest in the action or proceeding.”¹⁴¹⁵

B. “The affiant or declarant is authorized to act on behalf of the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) with respect to the decedent's interest in the action or proceeding.”¹⁶¹⁷

6. “No other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending

action or proceeding.”

7. “The affiant or declarant affirms or declares under penalty of perjury under the laws of the State of California that the foregoing is true and correct.”

(Code Civ. Proc., § 377.32, subd. (a).) A

certified copy of the decedent’s death certificate must also be attached to the affidavit or declaration. (Id., § 377.32, subd. (c).)

III.

DISCUSSION

Tamjidi

moves for an order allowing him to substitute into this action as the successor-in-interest on behalf of Plaintiff Hamid Reza Tamjidi (hereinafter, “Decedent”) on the grounds that: (1) he is the proper successor-in-interest and (2) has submitted a declaration satisfying the requirements under Code of Civil Procedure Section 377.32. In opposition, Defendants contend that the declaration is entirely conclusory, thus fails to adequately establish successor-in-interest standing. Upon review of Tamjidi’s declaration and subsequent notices of errata, the Court finds that Tamjidi has sufficiently established he is Decedent’s successor-in-interest.

Here,

Tamjidi avers that Decedent passed away on February 22, 2026 at West Valley Urgent Care. (Tamjidi Decl., ¶4, Ex. 1 – Death Certificate.) Decedent is survived by his son, Tamjidi and daughter, Darya Tamjidi. (Id.) Decedent has no surviving spouse. (Id., ¶5.) Furthermore, Decedent appointed Tamjidi as his attorney-in-fact via a Power of Attorney (“POA”) dated January 22, 2026. (Id., ¶7, Ex. 2 – POA; Not. of Errata re Tamjidi Decl., Ex. 2.) However, the POA only granted Tamjidi power to act on the Decedent’s behalf during his lifetime. (Not. of Errata re Tamjidi Decl., Ex. 2 – POA at p. 4, ¶5; see also Cal. Prob. Code, § 4152, subd. (a)(4) [“Subject to subdivision (b), the authority of an attorney-in-fact under a power of attorney is terminated by any of the following events: [¶](a)(4) Death of the principal, except as to specific authority permitted by statute to be exercised after the principal’s death.”]; People v. Fenderson (2010) 188 Cal.App.4th 625, 642 [“[a] power of attorney terminates upon the death of the principal....”].)

On

the other hand, Tamjidi declares under penalty of perjury that Decedent executed a holographic will on January 12, 2026, naming him the sole beneficiary of the proceeds from this instant lawsuit. (Tamjidi Decl., ¶8, Ex. 3 – Holographic Will; Amended Not. of Errata re Tamjidi Decl., Ex. 3.) To the extent that Defendants argue that the holographic will's dispositive effect cannot be presumed because its validity has not been determined by any probate court (Opp. at 6:23-7:3), Defendants fail to cite to any legal authority mandating that a testamentary instrument be found valid or invalid prior to a party seeking substitution as a successor-in-interest.

In

accordance with Code of Civil Procedure, Section 377.32, subdivision (3), Tamjidi merely needs to attest that there are no proceedings currently pending in California regarding the administration of Decedent's estate. In this present case, Tamjidi has done so. Specifically, Tamjidi states under penalty of perjury that there are no proceedings currently pending in California or Iran regarding the administration of Decedent's estate (See Tamjidi Decl., ¶9.) Additionally, Defendants have not presented any evidence to the contrary, i.e., providing proof there is a probate action currently pending in California and/or Iran related to the administration of Decedent's estate. Likewise, Tamjidi avers that no other person has a superior right to commence the action or proceeding or to be substituted for the Decedent in this pending action except himself per Code of Civil Procedure, Section 377.32, subdivision (6). (Id., ¶12.) There is no contradictory evidence such as a declaration and/or opposition from Darya Tamjidi suggesting that she has a superior right to be substituted as the successor-in-interest for the Decedent in this pending lawsuit.

IV.

CONCLUSION

Based on the foregoing, Non-Party Shahram Tamjidi's Motion to Determine Successor-in-Interest and Authorizing Substitution of Party Plaintiff is GRANTED.

Non-party Sharam Tamjidi to give notice.

Dated: August
28, 2026

Hon. Karen Moskowitz

Judge
of the Superior Court